

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 14, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal and Jeff White. Absent: Dicky Shanor. Also present: Kylie Soden, Deputy City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Roybal moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 24, 2017. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. White. Motion carried. Voting “yes” -- all members of the governing body present.

Mayor Orr opened a Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for a portion of the S1/2SE1/4 Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located north of and adjacent to Dell Range Boulevard, east of Griffith Avenue). Seth Lloyd, Planning and Development office, provided information on the property requested by the landowner to be annexed and reviewed requirements of and compliance with annexation conditions contained in state statutes. There being no further comments or input and purpose of the public hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 3rd READING - Annexing to the City of Cheyenne, Wyoming, the west 421.77’ of Tract 1, Lincoln Valley Tracts, being situated in a portion of the NW ¼ of Section 36 Township 14 North, Range 66 West of the Sixth Principal Meridian, Laramie County, Wyoming (located southeast of the intersection of Whitney Road and East Pershing Boulevard). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present. (#4191)

ORDINANCE – 3rd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from AR - Agricultural Residential (County) to AR Agricultural Residential for the west 421.77’ of Tract 1, Lincoln

Valley Tracts, Laramie County, Wyoming (located southeast of the intersection of Whitney Road and East Pershing Boulevard). Donn Edmunds inquired whether there were any development plans for the property and expressed concerns with flooding in the area. Eric Hammer, Planning and Development office, advised there are no current plans for development and the property owner is requesting annexation to connect to the City's sanitary sewer service. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present. (#4192)

ORDINANCE – 3rd READING - Annexing to the City of Cheyenne, Wyoming all of Lot 1, Block 1, Taxidermy Addition and the north 305.23' except north 150' of Tract 14, Sunny Side Addition and the north 50' of the south 300' of the west 91' of Tract 14, Sunny Side Addition; situated in the SW¹/₄SW¹/₄ of Section 27, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming (located northeast of the intersection of Ridge Road and East Pershing Boulevard). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Mr. Roybal moved to postpone to August, 28, 2017 at the request of the developer, seconded by Mr. Cook. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

ORDINANCE – 3rd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MU – Mixed-Use (County) to MUB Mixed-Use Business Emphasis for all of Lot 1, Block 1, Taxidermy Addition and the north 305.23' except north 150' of Tract 14, Sunny Side Addition and the north 50' of the south 300' of the west 91' of Tract 14, Sunny Side Addition, Laramie County, Wyoming (located northeast of the intersection of Ridge Road and East Pershing Boulevard). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Mr. Roybal moved to postpone to August, 28, 2017 at the request of the developer, seconded by Mr. Case. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

ORDINANCE – 3rd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from CB Community Business to LI Light Industrial for Lots 1, 2, 5, and a portion of Lot 3, Block 1, South Park Estates, 6th Filing, Cheyenne, Wyoming (located between Partoyan Drive and Walterscheid Boulevard, north of I-80). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present. (#4193)

ORDINANCE – 3rd READING - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to NR-3 Neighborhood Residential High Density for Lot 1, Block 4, Storey Boulevard Extension Subdivision, Cheyenne, Wyoming, to be known as Converse Place Apartments (located between N. Converse Avenue and Ogden Road, south of Storey Boulevard). Susana Montana, Planning and Development Department, provided information on the purpose of the re-zoning request, which involves a development project to construct three apartment buildings containing 72 units on the property; uses allowed under the current Neighborhood Business zone classification vs. the requested change to Neighborhood Residential High Density; history of annexation and past zone classification for the property, and two re-zoning protest

petitions that had been filed. Ms. Montana advised one of the petitions have met compliance requirements, therefore, action on the ordinance (on third and final reading) will require a minimum of eight affirmative votes by governing body members for the ordinance to pass. Randy Reed, Dray, Dyekman, Reed and Healey law firm, attorney representing the developers, stated that elements of the project plan remain unchanged and meet all UDC requirements, and commented in support of the ordinance. Also speaking in support of the ordinance were Rusty Snow, President, Summit Housing Group, and Donn Edmunds and Constance Gallegos, who spoke in favor generally with regard to low income housing. Speaking in opposition to the ordinance and proposed development project were: Frank Cole; Denise Burke, Boyd Wiggam, Lela Ladd and Krystal Lewis. Topics presented included: Past communications between Mr. Cole and the City involving the property; request that a six foot concrete fence be installed along the east and south boundaries of the project area; flooding caused by past construction; infrastructure and traffic concerns; communication between City staff and residents; property values; zoning laws and UDC requirements; similar housing development in Bozeman, MT; development plans for single family homes to be located on adjacent property, and a community plan to blend multi-family developments with existing neighborhoods. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Upon inquiry, Ms. Montana provided information on reviews and input that will occur during the site plan review process; land density calculations used to determine the number of units per acre, and concerns she has received from individuals regarding the proposed development project. Discussion followed and included: Infrastructure limitations; effects of low income housing on the community; project location; misperception related to City Council's involvement in the project; neighborhood homeowners' concerns regarding property values, and positive aspects of the project and benefit to the community. Motion carried. Voting "yes" -- all members of the governing body present. (#4195) [City Clerk note: Following announcement of the vote, Mr. White vacated Council Chambers and was absent for the remainder of the meeting]

ORDINANCE – 3rd READING - Amending Section 5.52.050 (A) and (B) of Chapter 5.52, Massage Establishments, within Title 5, Business Licenses and Regulations, of the Cheyenne City Code pertaining to Massage Therapists' licensing requirements. Reporting for Finance Committee, Mr. Luna moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting "yes" -- all members of the governing body present. (#4195)

ORDINANCE – 1st READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, Section 5.1.3 Official Zoning Map, and Section 5.6.2. PUD – Planned Unit Development District, of the Unified Development Code, changing the zoning classification from PUD Planned Unit Development to PUD Planned Unit Development for a portion of Lot 2, Block 1 of Buffalo Ridge Estates, 10th Filing, City of Cheyenne, Laramie County, Wyoming (located west of and adjacent to Sunflower Road, south of Sagebrush Ave) – referred to Public Services Committee. (Sponsor - Mr. Roybal)

ORDINANCE – 1st READING - Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Sections 1.4.4.a and c and Section 5.1, Table 5-1 of the UDC to rename and clarify the definition for Group dwelling to clarify the definitions for Adult Care--Assisted Living, and Adult Care--Nursing Home Land Uses and adding residential and nonresidential zoning districts where Group housing would be allowed as a conditional use – referred to Public Services Committee. (Sponsor - Mr. Roybal)

ORDINANCE – 1st READING –Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 5.1 of the Cheyenne Unified Development Code (UDC) to allow utility stations within the AG, AR, and AD zoning districts after an administrative use approval – referred to Public Services Committee. (Sponsor - Mr. Roybal)

ORDINANCE – 1st READING –Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 1.4.4 and 5.1 of the Cheyenne Unified Development Code (UDC) to allow home occupations as a permitted use within the NB, CB, CBD, LI, and HI zoning districts – referred to Public Services Committee. (Sponsor - Mr. Roybal)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, a portion of the S½SE¼ Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located north of and adjacent to Dell Range Boulevard, east of Griffith Avenue) – referred to Public Services Committee. (Sponsor - Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium-density Residential to MR Medium-density Residential for a portion of the S½SE¼ Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located north of and adjacent to Dell Range Boulevard, east of Griffith Avenue) – referred to Public Services Committee. (Sponsor - Mr. Roybal)

[CA] RESOLUTION - Adopting an amendment to the Future Land Use Map in PlanCheyenne, the master plan for the City of Cheyenne and the comprehensive plan for portions of Laramie County, amending the land use category from Urban Residential and Public Quasi-Public to Mixed-Use Employment for Lots 1-5, Block 1, South Park Estates, 6th Filing, Cheyenne, Wyoming (located between Partoyan Drive and Walterscheid Boulevard, north of I-80). Motion (per Consent Agenda) carried. (#5869)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Water Development Commission for grant funding for a Dam Enlargement Evaluation Project in the amount of \$400,000 and authorizing the Mayor, the City Clerk and the Director of the Board of Public Utilities to execute the application and all related documents. Motion (per Consent Agenda) carried. (#5870)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to execute a Wyoming Cultural Trust Fund Grant Agreement for Phase 2 of the Warren Rest House in Holliday Park. Motion (per Consent Agenda) carried. (Res. #5871//Cont. #6713)

RESOLUTION – Authorizing the addition of twenty-nine (29) structures and removal of two (2) structures in the Downtown Cheyenne Historic District from the Contributing Structures List maintained by the City's Planning office. Stephanie Lowe, Planning Department, advised staff is requesting a postponement for two weeks to provide time to clarify the number of structures on the List and for other needed clarifications. Christina Bird, Chair, Historic

Preservation Board, submitted and read a letter (on file with City Clerk's office) reflecting the Board's role in supporting and preserving historic buildings, and provided details on the review and expansion of historic districts. Mr. Luna moved to adopt, seconded by Mr. Laybourn. Mr. Roybal moved to amend by changing the number from 29 to 28 structures to be added; changing the number from 2 to 3 structures to be removed from the Contributing Structures List, and by removing building #17, the Fowlers Building (Z's Home Furnishing), from the List, seconded by Mr. Cook. Upon inquiry, Ms. Lowe advised that the form to opt out of the Contributing Structures List has been received from the owner's of the Fowlers Building and the amendment is no longer necessary. She explained the requested postponement is to allow for more time to receive opt out letters that are expected to be submitted. Motion to amend failed. Voting "no" – all members of the governing body present. Mr. Luna moved to postpone to August 28, 2017, seconded by Mr. Case. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Highland Park, Fourth Filing, a replat of the east 63.63 feet of Tract 13, Highland Park, Third Filing, situated in the SE1/4 of Section 5, T.13N., R.66W., 6th PM., Laramie County, Wyoming (located south of and adjacent to Persons Road, west of Avenue B-6) – referred to Public Services Committee. (Sponsor - Mr. Roybal)

[CA] RESOLUTION – Authorizing submission of a Federal Mineral Royalty Capital Construction account grant application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to complete the 26th Street Interceptor Project – referred to Finance Committee. (Sponsor - Mr. Luna)

[CA] RESOLUTION – Authorizing a street name change for a portion of Summit Drive lying between Ridge Road and College Drive, City of Cheyenne, Laramie County, Wyoming – referred to Public Services Committee. (Sponsor - Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to execute a Wyoming State Historical Records Advisory Board grant agreement for digitization of historic Cheyenne building plans – referred to Finance Committee. (Sponsor - Mr. Luna)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to enter into a Memorandum of Understanding with the Board of County Commissioners of Laramie County, Wyoming, to submit a joint application for a grant award under the Edward Byrne Memorial Justice Assistance Grant Program – referred to Finance Committee. (Sponsor - Mr. Case)

[CA] RESOLUTION – Proclaiming 'Purple Heart Day' and the City of Cheyenne, Wyoming, to be a Purple Heart City – referred to Public Services Committee. (Sponsor - Mr. Johnson)

[CA] Agreement between Timothy O'Leary and Dennis Rooney and the City of Cheyenne for the purchase of real property located at 2303 Westland Road, Cheyenne, Wyoming, to be used for public purposes. Motion (per Consent Agenda) carried (amount not to exceed \$76,000.00). (#6705)

[CA] Agreement for Juvenile Compliance and Diversion Officer services between Laramie County, Wyoming, the City of Cheyenne, and the Laramie County Community Juvenile Services Joint Powers Board (Juvenile Justice Detention Prevention funds). Motion (per Consent Agenda) carried (revenue to City \$18,521.00). (#6706)

[CA] Memorandum of Understanding by and between Laramie County, the City of Cheyenne, the Cheyenne Board of Public Utilities, the Cheyenne/Laramie County Board of Health, and the Cheyenne Regional Airport Board regarding the management of the ESRI Enterprise License Agreement. Motion (per Consent Agenda) carried. (#6707)

Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS). Mr. Luna moved to approve in an amount not to exceed \$49,825.00, seconded by Mr. Roybal. Comment was made related to downtown redevelopment, particularly “the Hole” property. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Johnson voting “no”. (#6708)

[CA] Human Services Agreement between United Way of Laramie County and the City of Cheyenne to create a Community School Pilot Program. (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$315,679.00). (#6709)

[CA] Human Services Agreement between United Way of Laramie County and the City of Cheyenne to provide technical assistance to Human Services community programs. (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$183,500.00). (#6710)

[CA] Agreement for operation of the Cheyenne Botanic Gardens Gift Shop between the City of Cheyenne and The Friends of the Botanic Gardens Foundation located at 710 S. Lions Park Drive, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#6711)

[CA] Grant Agreement accepting Federal Aviation Grant AIP #54 for the purchase of snow removal equipment by the Cheyenne Regional Airport Board. Motion (per Consent Agenda) carried. (#6712)

[CA] Contract between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for school resource officers for the 2017-2018 school year and summer school 2018 – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Wyoming, and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters, for the purpose of clarifying the intent of Section 23, Working in a Higher Job Rank – referred to Finance Committee.

[CA] Agreement for Juvenile Probation Services between Laramie County, Wyoming and the City of Cheyenne, office of Youth Alternatives – referred to Finance Committee.

[CA] Co-sponsorship of a Grant Agreement (along with Laramie County and the Cheyenne Regional Airport Board) with the Federal Aviation Administration for Federal Aviation Grant AIP #53 for the new Airport Terminal Project – referred to Finance Committee.

[CA] Agreement to donate real property between the City of Cheyenne and Lowe's Home Centers, LLC, pertaining to the Christensen Road Project – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6641 between the City of Cheyenne and American Striping Company to increase the overall contract amount for the 2017 Pavement Markings Project. (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$2,500.00). (#6641)

[CA] Consideration of Bid #S-1-18 for a contract between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, WY, for the 2017 Chip Seal, Part #2 Project – referred to Finance Committee.

Annual report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course by the Airport Golf Club as required by Lease Agreement No. 2833 – referred to Finance Committee.

Announcement was made that the regularly scheduled Monday, August 21, 2017 Finance Committee meeting will instead be held on Wednesday, August 23, 2017 at 11:00 a.m. in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming.

Under other business:

Mr. Laybourn commented on the status of the Civic Center Commons project and the CPOT Committee that is overseeing elements of the project. During discussion, Mayor Orr and Sylvia Hackl, City Attorney, provided information on history of the project, current status involving the FEMA grant and extension request, due diligence that had been conducted, and project delays.

Mr. Johnson requested clarification of procedures involving Freedom of Information requests with Ms. Hackl providing information on what information is needed from requesting parties to fulfill requests, and applicable state statutes addressing public records requests.

Mr. Johnson commented on the upcoming Arts Festival event involving a portion of proceeds which will benefit the Cheyenne Youth Orchestra.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:45 p.m.

Submitted by,

Kylie Soden,
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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